

Line 5

Case Name: *Elizabeth Dawkins v. Annabelle A. Alday, et al.*

Case No.: 24CV451521

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Annabelle Alday (“Defendant”) moves under Code of Civil Procedure Sections 2023.010, 2023.020, 2030.300(d), and 2033.280:

- (1) to compel Plaintiff Elizabeth Dawkins (“Plaintiff”) to provide verified Code-Compliant responses to Defendant’s Form Interrogatories, Set Two, and Special Interrogatories, Set One;
- (2) to deem all matters specified in the Requests for Admissions, Set One, admitted by Plaintiff; and
- (3) for a monetary sanction against Plaintiff in the amount of \$1,819.17 for Defendant’s reasonable attorneys’ fees incurred for this Motion.

Notice of Motion (the “Motion”) at 1:25-2:4 (filed: Dec. 8, 2025).

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On August 28, 2025, Defendant served these Code-Compliant discovery requests on Plaintiff:

- Form Interrogatories, Set Two;
- Special Interrogatories, Set One; and
- Request for Admissions, Set One (“RFAs”).

Declaration of attorney Joshua R. Jachimowicz (the “Jachimowicz Decl.”) In Support of Motion at ¶¶ 4-6 (filed: Dec. 8, 2025).

Under California law, Plaintiff has a clear duty to provide *verified* Code-Compliant responses to these discovery requests. C.C.P. §§ 2030.210, 2030.220, 2033.210, 2033.240, and 2033.250. The deadline for those responses was September 30, 2025.

Despite that clear duty, Plaintiff never provided any responses to the Form Interrogatories, Set Two, and the Special Interrogatories, Set One. Jachimowicz Decl. at ¶ 12.

Regarding the RFAs, while Plaintiff provided an un-verified response to the RFAs

on October 31, 2025, Plaintiff never provided a verified Code-Complaint response to the RFAs despite Plaintiff's clear duty to do so. Jachimowicz Decl at ¶¶7-10 at Exhibits 7 & 8 thereto. Under California law, "[u]nsworn responses are tantamount to no responses at all." *Appleton v. Superior Court*, 206 Cal. App. 3d 632, 636 (1988).

Now, more than nine months after the deadline expired for Plaintiff to respond to these discovery requests, Plaintiff never provided verified Code-Compliant responses to any of them. Jachimowicz Decl at ¶¶7-10, 12.

Hence, because it is undisputed that—

(1) Plaintiff never provided verified Code-Compliant responses to these discovery requests, and

(2) the September 30, 2025 deadline for Plaintiff to respond had long expired,

—it follows as a matter of logic and law that Defendant was justified in filing this Motion against Plaintiff on December 8, 2025, to compel Plaintiff to provide verified Code-Compliant responses to the Form and Special Interrogatories, which the Court will now compel Plaintiff to do within 30 days from today.

Moreover, because Plaintiff failed to provide verified Code-Complaint responses to the RFAs, Defendant in this Motion also seeks an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Plaintiff the truth of all matters specified in the RFAs. C.C.P. § 2033.280(b) & (c).

Moreover, for Plaintiff's misuse of the discovery process under Code of Civil Procedure Section 2023.010(d) by failing to provide verified-Code Compliant responses to these discovery requests, Defendant moves for a monetary sanction against Plaintiff of \$1,819.17 under Code of Civil Procedure Sections 2023.030 for Defendant's reasonable attorneys' fees incurred for bringing this Motion. C.C.P. § 2023.030.

Defendant's request in this Motion for a \$1,819.17 sanction is well supported by the attorney hourly rates and number of attorney hours spent on this Motion, which are well detailed in the Jachimowicz Declaration at ¶¶3, 13, and 14, and which the Court in the broad exercise of its discretion now finds are reasonable in all respects. So Plaintiff will pay Defendant \$1,819.17 as a sanction within 30 days from today.

In sum, the Motion is well supported by the law, well supported by the facts set forth in the Jachimowicz Declaration, and reasonable in all respects.

Plaintiff does not argue otherwise. Indeed, Plaintiff has not opposed this Motion at all, which the Court views as Plaintiff conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated "as an admission that the motion is meritorious") (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): "A failure to oppose a motion may be

deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Hence, the Motion is **GRANTED**.

Conclusion & Order

Accordingly, the Court **GRANTS** Defendant’s Motion in its entirety. Specifically, it is hereby **ORDERED that**:

- 1. The truth of each matter specified in the Request for Admissions, Set One, served on Plaintiff Elizabeth Dawkins on August 28, 2025, is now deemed admitted by Plaintiff Elizabeth Dawkins. And**
- 2. Within 30 days from today, Plaintiff Elizabeth Dawkins will provide verified Code-Compliant responses to the Form Interrogatories, Set Two, and the Special Interrogatories, Set One, served on Plaintiff Elizabeth Dawkins on August 28, 2025. And**
- 3. Within 30 days from today, Plaintiff Elizabeth Dawkins will pay \$1,819.17 to Defendant Annabelle Alday as a monetary sanction for Defendant’s reasonable attorneys’ fees incurred for this Motion.**

Moreover, Plaintiff Elizabeth Dawkins is put on **NOTICE** that failure to comply with this Order in all respects within 30 days from today may subject Plaintiff Elizabeth Dawkins to further escalating monetary and non-monetary sanctions including, but not limited to, issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *Jane Doe v. Vivek Paul Gundotra, et al.*

Case No.: 24CV452118

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Vivek Paul Gundotra (“Defendant”) moves to compel Plaintiff Jane Doe (“Plaintiff”) to answer Deposition Questions Nos. 1-8, which Plaintiff did not answer at deposition after her lawyer objected and instructed Plaintiff not to answer them. Notice of Motion (the “Motion”) at 2:4-7 (filed: Dec. 5, 2026). The Motion is made on the grounds that:

- (1) Plaintiff’s responses during her deposition are incomplete;
- (2) Plaintiff’s counsel improperly instructed Plaintiff not to answer;
- (3) Defendant’s interest in the information sought by the questions outweighs Plaintiff’s privacy interest, to the extent that Plaintiff meets the burden of showing a privacy interest exists; and
- (4) Good cause exists to compel discovery under Code of Civil Procedure Sections 2027.010 and 2025.480.

Motion at 2:7-12.

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolution of this Motion is straightforward.

This is a civil action claiming that Defendant committed conduct against Plaintiff constituting sexual harassment, sexual assault, or sexual battery. Defendant raises a defense of motive—that Plaintiff fabricated her claims after Defendant refused her monetary demands (the “Motive Defense”). Unless barred by privilege or another statutory prohibition established by our Legislature, Defendant here may seek to discover information in support of the Motive Defense because such information is either relevant or reasonably calculated to lead to the discovery of admissible information in this case. *See* Order dated February 2, 2026 at 6:14-7:16; C.C.P. § 2017.010 (broad scope of civil discovery).

To protect important privacy interests of Plaintiff and all parties in this case, the Court on December 8, 2025 signed a Stipulated Protective Order jointly filed by the parties, which among other things authorizes a party to “designate information disclosed during a deposition as ‘Confidential,’” which strictly limits the use of such designated information